

DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO 305 W. Colorado Ave. P.O. Box 919 Telluride, CO 81435	DATE FILED June 26, 2026 4:06 PM FILING ID: 35C0201B34E72 CASE NUMBER: 2026CV30011
Plaintiff: TSG SKI AND GOLF, LLC, a Colorado Limited Liability Corporation, v. Defendants: JULIE MEEHAN FEE, an individual; MARTINIQUE PROHASKA, an individual; and PAUL WISOR, an individual	
<i>Counsel for Plaintiff TSG Ski and Golf, LLC:</i> Troy A. Eid, #21164 John A. Wharton, #47776 Harriet Retford, #44958 GREENBERG TRAURIG, LLP 1144 15th Street, Suite 3300 Denver, CO 80202 (303) 572.6500 eidt@gtlaw.com ; john.wharton@gtlaw.com ; retfordh@gtlaw.com	▲ COURT USE ONLY ▲ Case No.: 2026CV030011 Division: 5
RESPONSE IN OPPOSITION TO JULIE MEEHAN FEE’S MOTION TO STRIKE	

Plaintiff TSG Ski and Golf, LLC (“Telski”), by and through undersigned counsel, respectfully submits this Response in Opposition to the Motion to Strike Paragraphs 41 through 52 and the Transcript Portion of Exhibit 2 of the First Amended Complaint, filed only by Defendant Julie Meehan Fee (“Fee”). In support, Telski states as follows:

INTRODUCTION

The Motion to Strike concerns Exhibit B to the First Amended Complaint, a partial written transcript of an audio recording from a meeting that took place between the parties in

Newport Beach, California. Fee (not joined by Defendants Martinique Prohaska or Paul Wisor) argues that the Court should strike these factual allegations because California is a two-party consent state and there is a dispute as to whether Fee consented to the recording, a claim which Telski disputes. Fee moves this Court to sanitize the record by striking critical factual allegations (the substance of which Fee does not dispute) and highly probative documentary evidence from Telski's First Amended Complaint. Fee's motion fundamentally misconstrues the purpose of a motion to strike under C.R.C.P. 12(f). The challenged paragraphs and transcript provide the exact and verbatim statements and admissions of Defendants detailing an illicit scheme to abuse their public offices for private financial gain. Because this evidence is factual support for Telski's claims of tortious interference and civil conspiracy, and because evidentiary admissibility determinations are premature at the pleading stage (Fee's arguments go to the admissibility of the evidence, not the credibility of the allegations—which the Court must accept as true at this stage), the Court must deny Fee's Motion to Strike.

ARGUMENT

Under C.R.C.P. 12(f), a court “may order any redundant, immaterial, impertinent, or scandalous matter stricken from any pleading, motion, or other paper.” C.R.C.P. 12(f) (emphasis added). However, Colorado courts have long established that motions to strike are strictly disfavored. *See generally Sierra Club v. Tri-State Generation & Transmission Ass’n, Inc.*, 173 F.R.D. 275, 285 (D. Colo. 1997) and *Barnes v. State Farm Mut. Automobile Ins. Co.*, 497 P.3d 5, 8 (Colo. App. 2021). Because striking a portion of a pleading is a drastic remedy, “reasonable latitude should be allowed to a pleader in the statement of the claim.” *Koch v. Whitten*, 342 P.2d

1011, 1015 (Colo. 1959). To prevail on a motion to strike, the moving party must demonstrate that the challenged allegations have no possible relation to the controversy and are “calculated to be harmful.” *Id.* at 1016. If allegations are relevant to the underlying claims, they cannot be stricken as a matter of law, regardless of how uncomfortable or damaging those facts may be to a defendant’s reputation.

“The rule’s use of the permissive term ‘may’ indicates a grant of discretion to the trial court.” *Greene v. Tennessee Bd. of Jud. Conduct*, No. 19CA1485, 2020 WL 14047242, at *3 (Colo. App. Dec. 3, 2020). “Even where the challenged allegations fall within the categories set forth in the rule, a party must usually make a showing of prejudice before the court will grant a motion to strike.” *Id.* “Irrelevant allegations will be stricken as scandalous only if they degrade defendants’ moral character, contain repulsive language, or detract from the dignity of the court[,] [and] [r]elevant allegations will be stricken as scandalous only if they satisfy the above criteria and go into unnecessary detail.” *Sierra Club* at 285.

Motions to strike at the pleadings stage are not an appropriate mechanism to adjudicate the ultimate admissibility of evidence at trial. *Est. of Martin by & through Guerrero v. Adams Cnty., Colorado*, No. 1:24-CV-00855-SKC-KAS, 2024 WL 2783777, at *8-9 (D. Colo. May 30, 2024)(Movants “ask the Court to strike portions of [defendant’s] amended answer, counterclaim, and third-party complaint, as well as an exhibit attached to that pleading, on the basis that those portions of the pleadings violate Federal Rule of Evidence 408[,]” [but] “neither the Complaint nor the allegations in it are evidence required to satisfy the evidentiary standard of Rule 403.”) “The admissibility of the [challenged photographs and other matters] are decisions for another

day with rulings on motions in limine or at trial.” *Id.* at *9; *see also, Almont Ambulatory Surgery Ctr., LLC v. UnitedHealth Grp., Inc.*, No. CV 14-3053-MWF(VBKX), 2015 WL 12765483, at *3 (C.D. Cal. Feb. 12, 2015)(collecting cases).

Here, Fee claims the targeted sections are redundant because they “simply restate” or “further elaborate” upon a theme. This argument fails under Colorado’s notice-pleading standards because, under C.R.C.P. 8(a), a plaintiff must allege sufficient facts to state a plausible claim for relief. Paragraphs 41 through 52 and the transcript of Exhibit 2 do not merely repeat abstract legal theories; rather, they provide necessary factual specificity showing how Defendants committed tortious interference and civil conspiracy. For example, Paragraph 42 quotes Defendant Prohaska explicitly confirming that if Telski signed the purchase agreement, striking ski patrollers would “go back to work.” Paragraph 47 details how the prospective buyer’s board would “effectuate” public actions such as expanding air service and housing. Paragraph 49 quotes Fee promising a “shortcut of a lot of government permission.” These admissions are factual support of Telski’s claims. They show that Defendants claimed control over a labor strike and municipal regulatory processes to force, or at the very least coerce, a private commercial sale. To strike these factual details would violate the core pleading principles set forth in the Colorado Rules of Civil Procedure.

If and when it comes time to introduce the transcript at trial, Telski will lay an appropriate foundation, which may include but not be limited to testimony regarding the discussions of the parties concerning the recording and the circumstances of the meeting and whether they give rise to reasonable expectations of privacy, and the strong policy grounds

supporting the rights of citizens to maintain records of meetings with government officials. Fee spends the bulk of her brief arguing that the underlying recording violates California Penal Code § 632, rendering the transcript legally inadmissible. This argument is procedurally misplaced. First, a C.R.C.P. 12(f) motion tests the pleadings, not the ultimate admissibility of evidence. Colorado courts do not resolve complex choice-of-law questions, statutory interpretation of out-of-state criminal codes, or evidentiary exclusionary rules on the face of a complaint. As Fee herself notes in her motion, challenges to the admissibility of evidence are properly reserved for discovery and subsequent pre-trial motion practice under the Colorado Rules of Evidence. *See* Mot., p. 4 n. 1. Second, even if California law were evaluated, California Penal Code § 632(d) does not automatically bind a Colorado state court presiding over Colorado common-law tort claims. Questions of evidence admissibility are governed by the forum state. *See* Restatement (Second) of Conflict of Laws § 138 (“The local law for the forum determines the admissibility of evidence”). Under Colorado law, one-party consent is entirely lawful. *See* C.R.S. § 18-9-304(1)(a) and C.R.S. § 18-9-303. Because Baylor Blanchard was a participant in the meeting and consented to the recording (as did others), the evidence is not inherently “unlawfully obtained” under Colorado law. Striking these allegations now based on speculative future evidentiary exclusions would be legal error. The transcript itself is relevant to the allegations in the complaint and does not contain any irrelevant scandalous or scurrilous content. Its creation also does not violate any Colorado public policy. Although the meeting itself took place in California, it entirely concerned events that would take place in Colorado, and the people being recorded were Colorado residents and elected officials of a Colorado municipality. The State of

Colorado has a stronger nexus to this dispute and interest in applying its own laws than the State of California, and the ultimate of the evidence in this Court will be governed by the Colorado Rules of Evidence.

Lastly, a matter is only considered “impertinent” or “scandalous” under C.R.C.P. 12(f) if it is entirely irrelevant and unnecessarily derogatory. While the transcript may be damaging to Fee’s public standing, it is not scandalous within the meaning of the rule because it accurately reflects Defendants’ own statements during a meeting (portions of which were held at a public coffee shop in Newport Beach). The critical inquiry under *Koch* is whether the matter is completely immaterial. Here, the statements directly support the element of improper means in a tortious interference claim and further demonstrate a conspiracy to unlawfully take control of the Telluride Ski and Golf Resort. Because the transcript shows the precise manner in which public officials weaponized municipal authority for private enrichment, the Court may consider it at the pleadings stage. It cannot be stricken simply because it exposes misconduct and, notably, Fee does not deny that any of Defendants’ statements in the transcript were actually made.

CONCLUSION

Telski’s First Amended Complaint lays out all elements to support its claims for Tortious Interference with Prospective Business Relations and Civil Conspiracy and supports them with factual allegations of statements made by Defendants. The transcript and the paragraphs derived from it are helpful to the litigation and this Court’s evaluation of Telski’s claims. Fee cannot use C.R.C.P. 12(f) as a shield to hide her own verbatim statements from judicial scrutiny. Thus, the Court should deny Fee’s Motion to Strike.

Respectfully submitted this 26th day of June 2026.

GREENBERG TRAURIG LLP

/s/ Troy A. Eid

Troy A. Eid, #21164

John A. Wharton, #47776

Harriet Retford, #44958

*Attorneys for Plaintiff TSG Ski and Golf,
LLC*

CERTIFICATE OF SERVICE

I hereby certify that on this 26th day of June 2026, a true and correct copy of the foregoing **RESPONSE IN OPPOSITION TO JULIE MEEHAN FEE'S MOTION TO STRIKE** was electronically filed with the Clerk of the Court using the Colorado Courts E-Filing system.

/s/ Slovana Mancuso
Slovana Mancuso